STANDARD OPERATING PROCEDURE			I-3200
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/15/08	DATE REVISED **01/14/25**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE CRIMINAL INVESTIGATIONS	RESOURCES NRS 29-812 THROUGH 29-821			
SUBJECT SEARCH WARRANTS FOR STRUCTURES	CROSS REFERENCE A-7100 EVIDENCE AND PROPERTY I-3210 SEARCH WARRANTS FOR NON-STRUCTURES AU-2500 CRITERIA FOR SWAT ACTIVATION			

I. Purpose:

The purpose of this policy is to establish the procedures for obtaining, serving, and returning search warrants for structures.

II. Policy:

Generally, the obtaining, serving, and returning of search warrants for structures shall be coordinated by the Investigations Division and reviewed by the ADC. Search warrants shall be obtained, served, and returned in accordance with Nebraska State Statutes. Search warrants for other places and items, such as blood draw for DUIs, electronic data from vendors (i.e. Meta, Snapchat, Google, etc.), and other non-structures shall adhere to the guidelines in I-3210 Search Warrants for Non-Structures.

III. Procedure:

A. Obtaining a Search Warrant: Any deputy may request a search warrant, but he or she must have permission from his or her supervisor, and he or she shall notify the on-call investigator (if he or she is not assigned to the Investigations Division). Search warrants for blood draws related to DUI case(s) shall be an exception.

1. The on-call investigator shall be notified prior to application for any search warrant. The on-call investigator may be requested to assist with the application or simply notified if assistance is not required.

2. The deputy shall complete an Affidavit for Search Warrant containing the following:

a) The person(s), premises, and/or vehicle(s) to be searched.

(1) Persons who reside at the location to be searched should be named or described in detail. This should include accurate spelling, dates of birth and addresses for all persons, if possible. The suspect should be identified specifically, if possible and his or her connection to the location to be searched should be noted.

(2) Premises to be searched shall be identified by exact address or legal description including apartment numbers. If an address is not known, a detailed description of the location is required.

(3) The affidavit must specify the area to be searched (e.g., the entire premises or a specific area in the premises.) The probable cause must relate to the area to be searched.

b) The property to be searched for and seized.

(1) Accurate and full descriptions of property should be included.

(2) Serial numbers, brand names, and model numbers should be used when possible.

c) The probable cause for the search including what type of crime has been (or is about to be) committed or is occurring and how the deputy has determined the items to be seized are at the location to be searched.

d) The identity of victims, witnesses, or citizens whose information was used to create probable cause (Unless the source is a confidential informant).

e) A description of how the informant or the deputy came to know the location of the items to be seized and how current the knowledge is.

f) Description of the informant's reliability (if an informant is used), including:

(1) The informant's reputation.
(2) Whether or not the informant may have a vendetta against anyone involved in the situation.
(3) The informant's criminal history (This information is provided for the signing judge but does not need to be included in the affidavit).
(4) Whether or not the informant is being compensated in any way for the information (This information is provided for the

signing judge, but does not need to be included in the affidavit).

(5) Explanation of how and to what extent information from informants has been verified.

g) Explanation of any urgency in searching the location.

h) Reason(s) for serving the warrant at night or entering without knocking (see section B below).

3. The deputy shall complete a Search Warrant form. This form shall include the description of the location(s) to be searched and the description of the items to be searched for and seized. This information should be substantially the same or identical as the information provided in the affidavit.

4. The deputy shall complete a SWAT Risk Assessment form, noting special search warrant provisions (see section B below). The deputy shall forward the completed form to the SWAT Team Commander or the Commander's designee. The SWAT Team Commander will use the completed risk assessment to determine if SWAT is appropriate for the warrant service. The Commander shall return the SWAT Risk Assessment form to the deputy with their determination, prior to the warrant's service.

a) A SWAT Risk Assessment form is not required for serving a search warrant at a business when the warrant requires personal service and the evidence sought is limited to records or minor evidentiary items (e.g., vials of blood, medication). However, if the business appears uncooperative, the affiant may complete a SWAT Risk Assessment form and consult with their supervisor for guidance on warrant service.

5. The deputy shall provide the completed Affidavit for Search Warrant and the Search Warrant form to his or her supervisor for review. If the search warrant is being prepared by a member of the Investigations Division, the Investigations Commander or the Assistant Investigations Commander shall be notified by the investigator or his or her supervisor.

6. After approval, the deputy completing the Affidavit and Search Warrant shall coordinate the review of the search warrant by a judge. If the judge is satisfied probable cause exists, he or she shall sign the Affidavits and Search Warrants.

a) During normal business hours, the deputy shall email the Sarpy County Bailiffs (bailiff@sarpy.gov) with his or her request to have a judge review the search warrant. The bailiff will notify that deputy what judge will review the search warrant. The deputy shall then

directly email that judge his or her notarized affidavit and unsigned search warrant; each document shall be a separate attachment. After the judge signs the search warrant, the documents will be emailed back to the deputy.

b) Between the hours of 1630 and 0800, weekend, holidays, or any other day Sarpy County Court is not in session, the on-call judge shall handle the search warrant. Prior to contacting the on-call judge, deputies should attempt contact with the on-call county attorney (CA) to review the request. If no contact is made with the on-call CA, the deputy may contact the appropriate on-call judge. If the on-call judge does not answer, a voicemail shall be left identifying the deputy, reason for the call, and a return phone number. Allow fifteen (15) minutes for the on-call judge to return the call. If after fifteen (15) minutes no return call occurs, the deputy may attempt contact with any other Sarpy County Judge.

c) A signed copy of the Affidavit for Search Warrant and Search Warrant shall be provided to the Clerk of County Court as soon as possible after the Judge signs the search warrant. If the Judge signs the search warrant after hours, the deputy shall be responsible for ensuring a copy of the affidavit and search warrant is received by the Clerk. Forwarding the signed copies through email to the Clerk is allowed if the deputy can show it was received by the Clerk of County Court.

7. Any search warrant of a structure that is to be served outside of Sarpy County in connection with an investigation conducted by Sarpy County deputies, shall have the assistance of a law enforcement officer from that outside jurisdiction. A specific officer, from the host jurisdiction shall be named on as co-affiant on the affidavit and also be named on the search warrant. That officer, so named, shall be present at the time the search warrant is served.

B. Special Search Warrant Provisions:

1. Nighttime Service:

a) Search warrants must be served between 0700 and 2000 hours unless the warrant specifically authorizes nighttime service.

b) The Affidavit for Search Warrant must describe specific reasons why the search warrant should authorize nighttime service and after the list of reasons must include, “the public interest requires that the warrant not be restricted to be serviced in the daytime.”

2. “No-Knock” Warrant:

a) Search warrants must be served by "knocking and announcing" unless the warrant specifically authorizes service without "knocking and announcing."

b) The Affidavit for Search Warrant must describe specific reasons why the search warrant should authorize "no knock" service and how it is in the public interest. Reasons may include but are not limited to:

(1) Eminent danger to deputies serving the warrant based on specific information regarding violence of suspect(s), prior history of violence, knowledge of firearms present, etc.

(2) A substantial risk that property to be seized could be easily destroyed.

C. Preparation and Planning for Search Warrant Service:

1. The deputy completing the search warrant and/or his or her supervisor shall be responsible for arranging for all necessary manpower and equipment prior to warrant services to ensure a safe and orderly search. Generally, a uniformed deputy should be present during the search.

2. The deputy and his or her supervisor shall complete a plan regarding routes of travel to the location, entry procedures, perimeter security, securing of any suspects, and any additional consideration.

3. If the search warrant includes special provisions (e.g. nighttime service and/or "No Knock" service), the SWAT Team may be utilized (see AU-2500 Criteria for SWAT Activation).

4. The deputy or his or her supervisor shall notify the ADC prior to the service of any search warrant unless the search warrant is issued regarding property already in the custody of the Sheriff's Office (e.g., search of computer files, search of vehicle at Sheriff's Office Tow Lot, seizure of property from inmate's property bag). The deputy or his or her supervisor shall also notify a command officer in his or her division.

5. There shall be no fewer than two Sarpy County Sheriff's Office deputies at the location when a search warrant is served. A supervisor shall be contacted prior to the execution of any search warrant. The supervisor shall make a determination if he/she will be physically present during the execution of the warrant.

6. Prior to any search warrant execution, a briefing meeting shall be conducted. During the briefing the plan for serving the search warrant shall

be explained, each law enforcement officer shall be assigned a specific task(s), and transportation to and from the location shall be determined.

D. **Search Warrant Service:** Search warrants must be served and returned to the Judge within ten (10) days of issuance. Search warrants shall be served according to the following guidelines:

1. Plainclothes deputies shall wear ballistic protection. Plainclothes deputies clothing and/or approved ballistic carriers shall clearly identify them as law enforcement. Deputies wearing a ballistic vest under his or her clothing or ballistic vest in an approved carrier, shall prominently display “Sheriff” and/or the Sheriff’s Office badge on the front of the carrier, with the back prominently displaying” SHERIFF”.

2. Deputies serving search warrants shall clearly announce their presence and purpose and shall demand entry, except in the case of a court authorized “No-Knock” search warrant.

3. If timely access is denied, or if no one appears to be present or responding, or deputies reasonably believe the occupants are destroying evidence or are preparing to resist, then immediate forced entry may be made.

a) Deputies making forced entry shall continue to announce their presence and purpose upon gaining entry.

b) In non-emergency situations, deputies should select the least destructive means practical when making forced entry. Deputies should make no guarantees that payment will be made for damaged property.

4. Deputies shall secure the premises by locating and controlling all persons present at the scene.

5. When practical, at least one law enforcement officer should monitor any persons secured at the scene and other law enforcement officers should work in pairs with one person recoding the time and location of evidence discovered.

6. When practical, evidence should be photographed in its original location prior to collection.

7. A Search Warrant form signed by the judge shall be provided to the person searched or to the owner of the property searched, or a copy shall be left at the premises searched. The Affidavit for Search Warrant shall **NOT** be provided to the person searched or to the owner of the property searched.

8. An inventory of all items seized shall be made in the presence of the deputy responsible for the search warrant and the person from whose possession or premises the property was taken if they are present, or in the presence of at least one other law enforcement officer. The inventory shall be verified by the responsible deputy.

9. If any items are seized, a receipt for the property shall be completed by the deputy responsible for the search warrant. A copy of the receipt shall be provided to the person from whom or from whose premises the property was taken or the receipt shall be left at the place from which the property was taken.

10. All items seized shall be logged into evidence following established procedures (see A-7100 Evidence and Property)

11. The deputy responsible for the search warrant shall complete an incident, arrest, or supplemental report (depending upon the results of the search). A copy (need not be a signed copy) of the Affidavit for Search Warrant, Search Warrant form, and the property inventory shall be included with the report.

12. The deputy responsible for the search warrant shall be make reasonable efforts to secure the premises if forced entry was required and there is no responsible party on location.

13. Any deputy involved in the execution of a search warrant that damages property during the entry or execution shall document the damage with photographs and complete a report.

E. Warrant Return: Warrants must be returned within ten (10) days of issuance.

1. A Search Warrant form (signed by the Judge) with a completed Return and Inventory portion shall be returned to the Clerk of County Court.

2. The deputy returning the Search Warrant form shall obtain a photocopy of the returned form with the official date and time stamp showing the return. This copy shall be included with the deputy's report.